

Tentative Rulings and Resolution Review Hearings

August 3, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

ADUDELLE VS. FORBES

CASE NUMBER: 25CV-0208759

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 16, 2026 for Plaintiff's failure to seek a default judgment as required by CRC 3.110(h). CRC 3.110(h) requires a plaintiff to obtain a default judgment within 45 after default is entered. Default was entered on November 10, 2025 and therefore Plaintiff was required to obtain a default judgment within 45 days. No default judgment has been obtained. Plaintiff has not submitted a response to the OSC. Without any explanation for Plaintiff's failure to comply with CRC 3.110(h), the Court will impose sanctions in the amount of \$250 against Plaintiff and counsel. The clerk is instructed to prepare a separate order of sanctions. The Court will issue a new Order to Show Cause Re: Monetary Sanctions in the amount of \$500 to Plaintiff and Counsel for their failure to comply with CRC 3.110(h). The new Order to Show Cause is set for **Monday, October 19, 2026, at 8:30 a.m. in Department 63.** The clerk is instructed to prepare a new Order to Show Cause Re: Monetary Sanctions in the amount of \$500.

IN RE ALLOY MARINE PRODUCTS, INC.

CASE NUMBER: 26CV-0211072

Tentative Ruling on Petition for Order Reinstating to Active Status: Petitioner Michael Yochum moves for an Order directing and authorizing the Secretary of State of California to reinstate Alloy Marine Products, Inc. (Entity No. C1583967) to active status pursuant to Gov. Code § 12261. Petitioner has provided evidence that, due to a misunderstanding between Petitioner and Denise Yochum, Denise Yochum who is a director of the corporation, filed a Certificate of Dissolution that included the false statement that there had been a vote to dissolve the corporation and that all shareholders had voted to dissolve the corporation. The Court finds that “[t]he factual representations by a shareholder, member, partner, or other person that are contained in the termination document are materially false” within the meaning of Gov. Code § 12261(a)(1). The Court therefore orders reinstatement of C1583967 to active status.

The Petition is **GRANTED**. Petitioner provided a proposed Order that does not contain all the necessary language. Petitioner shall provide a proposed Order that also includes the language contained in Gov. Code § 12261(b)(2). Additionally, paragraph 4 on page two of the proposed Order does not match the language in Gov. Code § 12261(b)(3) so this will need to be corrected.

AMARANT VS. MONARCH LEARNING CENTER CHARTER SCHOOL, ET AL.

CASE NUMBER: 23CV-0202392

Tentative Ruling on Petition to Approve Minor’s Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Truth Amarant’s claims. Deborah Amarant was appointed as the minor’s Guardian ad Litem on September 22, 2023. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor’s compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition does not contain sufficient information for the Court to find that the settlement is in the minor’s best interest. No medical records were provided and it is unclear if the minor will need future medical care, including scar revision. If future medical care is necessary, information regarding possible costs needs to be provided. It is unclear how the parties arrived at a settlement of \$155,000 and no information was provided regarding insurance policy limits.

Even if the Court were to be provided sufficient information to determine that the settlement is in the best interest of the minor, there are still issues with how the money will be distributed. The Petition lists a guardianship of the estate under this case number. There is no guardianship of the estate in this case. If the intent is to place the money in a trust account (versus a blocked account), a guardianship of the estate will need to be established in probate court. Regarding costs, counsel requests a total of \$5,447.98, with the majority of the costs being attributed to One Legal, Lopez & Associates, and Attorneys to Go with no further explanation for the reasons for the cost. More detail is necessary in order for the Court to find that these costs were reasonably incurred. Petitioner will need to provide the missing information in a Supplement to the Petition.

The future hearing date is dependent on whether Petitioner intends to establish a guardianship of the estate or if the intent is actually to place the net settlement in a blocked account. Counsel shall attend the hearing and should be prepared to inform the Court whether the intent is to place the settlement funds in a blocked account, or if a guardianship of the estate needs to be established. A new hearing date will be selected at the hearing. Any supplemental filings will be due no fewer than five court days prior to the new hearing date. The clerk is directed to vacate the August 10, 2026 review hearing. **An appearance by counsel only is necessary on today’s calendar. Petitioner and the minor need not attend today’s hearing.**

DAVIS, ET AL. VS. GENERAL MOTORS LLC

CASE NUMBER: 25CV-0208830

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 9, 2026 to Plaintiffs' counsel and Defendant's Counsel for failing to appear at the Mandatory Settlement Conference on June 29, 2026. Defendant's counsel filed a written response that provides evidence that the matter settled the Friday prior to the Mandatory Settlement Conference, that Plaintiff's counsel electronically served a Notice of Settlement at 9:43 a.m. the date of the settlement, and that in an abundance of caution, staff from Defendant's counsel's office tried to reach the clerk by phone the morning of the settlement conference. In light of this, the Court will **DISCHARGE** the Order to Show Cause as to Defendant's counsel. The Court notes that a Notice of Settlement was not filed in this matter. Plaintiffs' counsel did not file a written response. With no sufficient excuse for failing to appear at the Mandatory Settlement Conference, monetary sanctions are imposed in the amount of \$250 against Plaintiffs' counsel California Consumer Attorneys, P.C. The clerk is directed to issue an Order of Sanctions. The Court notes that trial in this matter is calendared for September 1, 2026. Based on the evidence provided by Defendant's counsel, the trial date is vacated. The matter will be on calendar on **Monday, October 5, 2026 at 9:00 a.m. in Department 63** for status of Notice of Settlement and judgment/dismissal. **No appearance is necessary on today's calendar.**

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

CASE NUMBER: CVPO21-0198083

Tentative Ruling on Motion for Summary Judgment/Adjudication: Six Defendants have filed a Motion for Summary Judgment or Adjudication that was joined by a seventh Defendant. The motion and joinder are opposed by Plaintiffs. The Court notes that the filings for this motion total more than 9,000 pages. The Court has worked diligently to review this matter. However, due to the volume of the filings, the Court has been unable to review the motion and supporting evidence in their entirety. The Court further notes that oral argument on this motion is likely to take longer than can be accommodated on the Law & Motion calendar. To allow time for the Court to fully review this matter and issue a tentative ruling, and also to provide the parties sufficient time for oral argument, the Court will specially set the hearing on the motion for **Friday, August 28, 2026 at 8:30 a.m. in Department 63**. Based upon the circumstances articulated above, the Court finds good cause to hear the motion within 30 days of trial pursuant to CCP § 437c(a)(3). No additional briefing is permitted. A tentative ruling will be posted no less than twelve hours prior to the hearing. **No appearance is necessary on today's calendar.**

JS MECHANICAL, INC. VS. LAFF, LLC, ET AL.

CASE NUMBER: 25CV-0207114

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Defendant and Defendant's counsel on June 23, 2026 for failure to appear in court on June 1, 2026. Defendant filed a written response that provides sufficient excuse for the non-appearance. The Order to Show Cause is **DISCHARGED**. The matter is on calendar today at 9:00 a.m. and an appearance will be necessary at 9:00 a.m.

MALINOVSKY VS. SHASTA UNION HIGH SCHOOL DISTRICT, ET AL.

CASE NUMBER: 26CV-0210144

Tentative Ruling on Demurrer and Motion to Strike: Respondents Shasta Union High School District ("SUHSD"), Jason Rubin, Heath Bunton, and Karen Fifield demur to the First Cause of Action for Writ of Mandate under CCP § 1085 contained within the Verified First Amended Petition for Writ of Peremptory Mandate (First Amended Petition) filed by Petitioner Joseph Malinovsky filed on April 10, 2026. Respondents also move to strike the First Amended Petition. Petitioner opposes the demurrer and motion to strike. The Court notes Petitioner's opposition to the demurrer exceeds 15 pages, in violation of CRC 3.1113(d). The Court, in its discretion, will consider the excess pages.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with

the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Matthew Mendoza indicates compliance with the meet and confer requirements.

Request for Judicial Notice. Respondents’ request to take judicial notice of the First Amended Petition for Peremptory Writ of Mandate filed on April 10, 2026, is granted pursuant to Evidence Code § 452(d).

Objections to Petitioner’s declaration in support.

- Objection to Page 2, lines 5-10: Sustained.
- Objection to Page 2, lines 11-21: Overruled. This information was provided in the First Amended Petition.
- Objection to Page 2, line 22 to Page 3: Overruled as to page 2, lines 22-25 and page 3 lines 5-11; this information was provided in the first amended Petition. Sustained as to page 2, line 26 to Page 3, line 4.
- Objection to Page 3, lines 13-18; Exhibit H: Sustained.
- Objection to Page 3, lines 10-25; Exhibit I: Sustained.

Objections to Petitioner’s compendium of evidence.

- Objections to Exhibit H and I: Sustained as improper extrinsic evidence.
- Objections to Exhibit L, M, N, O, P, Q, R, and S: Sustained as duplicative.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.

The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

- (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading.
- (b) The person who filed the pleading does not have the legal capacity to sue.
- (c) There is another action pending between the same parties on the same cause of action.
- (d) There is a defect or misjoinder of parties.
- (e) The pleading does not state facts sufficient to constitute a cause of action.
- (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.
- (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.
- (h) No certificate was filed as required by Section 411.35.

CCP § 430.10.

The Demurrer is brought on the grounds that the First Amended Petition fails to state facts sufficient to show that Respondents violated a ministerial duty, fails to state clear and certain allegations pursuant to CCP § 430.10, that Petitioner failed to exhaust his administrative remedies prior to filing his suit, and that Petitioner lacks standing and/or there is a misjoinder of parties. The First Amended Petition seeks a writ of mandate pursuant to CCP § 1085.

Standing and/or misjoinder of parties. Respondents argue that Petitioner is seeking to challenge a complaint made by his child and that therefore Petitioner does not have standing to sue on behalf of his child without legal representation and, to the extent Petitioner asserts the claims as his own, they demurrer based on misjoinder of parties. While the complaint is about alleged conduct directed towards his child, the complaint which initiated the investigation at issue was made by Petitioner. Respondents acknowledge that Petitioner had the right to file the complaint. It thus follows that Petitioner has the right for that complaint to be handled in compliance with SUHSD’s policies and procedures. The demurrer is **OVERRULED** on the grounds that Petitioner lacks standing

or there is a misjoinder of parties.

Violation of a ministerial duty. Respondents argue that the First Amended Petition fails to state facts sufficient to show Respondents failed to comply with the mandated reporting requirements of Penal Code § 11166. “[A] mandated reporter shall make a report to an agency... whenever the mandated reporter, in the mandated reporter’s professional capacity or within the scope of the mandated reporter’s employment, has knowledge of or observes a child whom the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect.” Penal Code § 11166(a).

Respondents further argue that the First Amended Petition fails to state facts sufficient to show Respondents failed to comply with the mandated reporting requirements of Board Policy 1312.1. “While mandate lies to compel a public agency to comply with a ministerial duty, it usually does not lie to compel a public agency to exercise its discretion in a particular manner.” *Citizens for Amending Proposition L v. City of Pomona* (2018) 28 Cal.App.5th 1159. “A public entity has a ministerial duty to comply with its own rules and regulations where they are valid and unambiguous.” *Gregory v. State Bd. of Control* (1999) 73 Cal.App.4th 584.

Board Policy 1312.1 provides that any complaint of child abuse or neglect alleged against a district employee “shall be” reported to the local agencies in accordance with law and Board Policy 5141.1. The Board Policy created a ministerial duty to report “any complaint of child abuse or neglect.”

Petitioner argues that Respondents violated their ministerial duty by failing to report the complained of physical contact between the teacher and his minor son to the appropriate authorities as child abuse. However, as Respondents point out in their briefing, the policy and law only require reporting of abuse based on “reasonable suspicion.” This vests Respondents with significant discretion in their reporting requirements. Through the writ process, the court cannot “compel the exercise of that discretion in a particular manner or to reach a particular result.” (*Daily Journal Corp. v. County of Los Angeles* (2009) 172 Cal.App.4th 1550, 1555.)

Here, the First Amended Petition makes it clear that Respondents conducted an investigation. The fact that they conducted that investigation in a manner that Petitioner does not approve of does not create a violation of their ministerial duty.

The demurrer is **SUSTAINED** on the grounds that the First Amended Petition fails to state facts sufficient that Respondents violated a ministerial duty.

Exhaustion of administrative remedies. Respondents argue that Petitioner has failed to state facts to show he has exhausted all administrative remedies available. Specifically, they allege that Petitioner failed to challenge the investigation’s findings and determination by appealing to the Board prior to filing suit pursuant to Board Policy 1312.1.

“The writ must be issued in all cases where there is not a plain, speedy, and adequate remedy, in the ordinary course of law.” CCP § 1086. “[T]he exhaustion of administrative remedies, including ““internal grievance procedures”” provided by a public entity, is a jurisdictional prerequisite to filing an action in court.” *Romero v. County of Kern* (2025) 116 Cal.App.5th 1189. “This is so even though the administrative remedy is couched in permissive language; an aggrieved party is not required to file a grievance or protest if he does not wish to do so, but if he does wish to seek relief, he must first pursue an available administrative remedy before he may resort to the judicial process.” *Yamaha Motor Corp. v. Superior Court* (1986) 185 Cal.App.3d 1232.

Board Policy 1312.1 provides that, “[i]f either the complainant or the employee submits an appeal of the Superintendent’s decision to the Board, the Board shall determine whether to uphold the Superintendent’s decision without hearing the complaint, appoint an appeals committee to advise the Board, or hear the appeal

itself.”

While the appeal of a complaint is permissive, it is clear Petitioner is first required to pursue an appeal to the Board. The First Amended Petition fails to allege facts that this prerequisite has been satisfied.

Petitioner argues that an appeal to the Board is precluded by the futility doctrine. Exceptions to exhaustion of administrative remedies occurs “when the administrative remedy is unavailable, when it is inadequate, or when it would be futile to pursue it.” *SJCBC LLC v. Horwedel* (2011) 201 Cal.App.4th 339. “The futility exception to the requirement of exhaustion of administrative remedies is a very narrow one.” *County of Contra Costa v. State of California* (1986) 177 Cal.App.3d 62. “The futility exception requires that the party invoking the exception can positively state that the [agency] has declared what its ruling will be on a particular case.” *Jonathan Neil & Assoc., Inc. v. Jones* (2004) 33 Cal.4th 917. The First Amended Petition and Opposition fail to positively state that the Board has declared what its ruling would be on this particular case.

The demurrer is **SUSTAINED** on the grounds of Petitioner’s failure to exhaust administrative remedies. Leave to file an amended petition is denied considering Petitioner has not complied with appeal requirements of Board Policy 1312.1. Thus the filing of an amended Petition would be ineffective.

Failure to state clear and certain allegations. Respondents contend that the First Amended Petition is vague, conclusory, and that inconsistent allegations obscure the factual basis and conflates legal theories.

A traditional writ of mandate under CCP §1085 is available when the petitioner has no plain, speedy, and adequate remedy; the respondent has a clear, present, and usually ministerial duty to perform; and the petitioner has a clear, present, and beneficial right to performance. *Conlan v. Bonta* (2002) 102 Cal. App. 4th 745, 748; *Unnamed Physician v Board of Trustees* (2001) 93 Cal. App. 4th 607, 618. Two basic requirements are essential to the issuance of the writ: (1) a clear, present and usually ministerial duty upon the part of the respondent, and (2) a clear, present and beneficial right in the petitioner to the performance of that duty.

The First Amended Petition alleges Respondents have a duty under Penal Code § 11166 and Board Policy 1312.1 to report allegations involving physical contact and a ministerial duty to produce an objective investigation free from fraud. The First Amended Petition further alleges that Petitioner submitted a complaint and Respondents failed to discharge these duties in relation to that complaint. The demurrer is **OVERRULED** on the grounds that the First Amended Petition fails to state clear and certain allegations.

The Demurrer is **SUSTAINED** without leave to amend. Considering the demurrer is sustained without leave to amend and the Petition will therefore be dismissed, the motion to strike is **DENIED** as moot. Respondents provided proposed Orders that will be modified to reflect the Court’s ruling. The clerk is directed to close the file and vacate any future hearing dates upon processing of the order.

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Demurrer (by Defendant County of Shasta): Defendant County of Shasta demurs to the Second Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Dominick Hurley provides evidence of sufficient meet and confer efforts.

Merits. While the issue was not raised by either party, immunity regarding the Second Cause of Action for violation of the Confidentiality Medical Information Act, the Third Cause of Action for violation of the Elder Abuse and Dependent Adult Civil Protection Act, and the Seventh Cause of Action for disability discrimination and failure to provide reasonable accommodation was not raised by the County in its first demurrer.

CCP § 430.41(b) provides “A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.”

“If the party against whom a complaint or cross-complaint has been filed fails to object to the pleading, either by demurrer or answer, that party is deemed to have waived the objection unless it is an objection that the court has no jurisdiction of the subject of the cause of action alleged in the pleading or an objection that the pleading does not state facts sufficient to constitute a cause of action.” CCP § 430.80(a).

Pursuant to CCP § 430.41(b), it is unclear whether the County may now be precluded from demurring on the grounds of immunity. The Court notes that there are two separate demurrers and a motion to strike currently set for hearing on August 24, 2026. In the interests of justice and judicial economy, the Court will continue this matter to **Monday, August 24, 2026, at 8:30 a.m. in Department 63**. The parties are to provide further briefing only regarding the applicability of CCP § 430.10(b) to the grounds of immunity, not to exceed 5 pages, filed no later than August 14, 2026. No further briefing on any other issue is permitted. **No appearance is necessary on today’s calendar.**

ROGHANI VS. AMERICAN HONDA MOTOR CO., INC.

CASE NUMBER: 24CV-0205967

Tentative Ruling on Motion to be Relieved as Counsel: Daniel Gopstein of Quill and Arrow, LLP moves to be relieved as counsel for Plaintiff Jasmine Kasmira Roghani. The motion is unopposed. The matter has not been properly noticed. CCP § 1005(b) requires a motion to be filed and served at least sixteen court days prior to the hearing. Plaintiff was served on July 22, 2026 by mail; less than sixteen court days prior to today’s hearing. Defendant was served on July 27, 2026 by email; less than sixteen court days prior to today’s hearing. The motion is denied for Counsel’s failure to timely serve the motion as required by CCP § 1005(b). Additionally, the Court notes that trial is scheduled for August 11, 2026. Accordingly, the Court has legitimate concerns about relieving counsel so close to the trial date. If Counsel were relieved, Plaintiff would have insufficient time to seek new counsel.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the denial. Given the pending trial date, the parties are encouraged to meet and confer about the trial date and whether a stipulation to continue may be in order.

Tentative Ruling on Motion to Reopen Discovery and Compel Deposition: Defendant American Honda Motor Co., Inc. moves for an order to reopen discovery, to compel the depositions of Plaintiff’s five designated experts and for monetary sanctions in the amount of \$2,524.00. In the alternative, Defendant seeks an order to exclude the experts’ testimony. Plaintiff has submitted an opposition that argues that the motion is now moot because Plaintiff has offered a deposition date for expert Darrell Blasjo. Plaintiff does not oppose the reopening of discovery for the Blasjo deposition. Plaintiff requests that the Court not impose sanctions based on this offer. The opposition does not address Defendant’s request to depose the other four designated experts.

Merits of Motion: CCP § 2024.050(a) permits a party to move to reopen discovery. The request to reopen discovery is unopposed. The Court finds good cause to reopen discovery for the sole purpose of obtaining the depositions of Plaintiff’s designated experts. The Court grants the request to reopen discovery.

While Plaintiff argues that the motion is now moot because they have offered a date for one of the experts, the Court finds that the motion is not moot. Plaintiff has not agreed to nor provided dates for the other experts. The Court finds that Defendant properly noticed the expert depositions. A review of the evidence shows that Defendant did not provide dates for the depositions in the meet and confer process. Accordingly, Defendant had no choice but to file the current motion. The Court will grant the request to compel the depositions of all five experts.

Finally, there is the issue of monetary sanctions. The Court may impose sanctions for a “misuse of the discovery process.” CCP § 2023.030. Misuses of discovery include failing to respond to authorized discovery and unsuccessfully opposing a motion to compel. CCP § 2023.030(d) and (h). The Court finds that Plaintiff failed to respond to authorized discovery and has unsuccessfully opposed the current motion. Additionally, the Court finds that there is no evidence that the imposition of sanctions would be unjust. The Court will order sanctions in the amount of \$2,524.00.

The motion is **GRANTED**. The depositions shall occur within seven days. Sanctions are imposed in the amount of \$2,524. The sanctions are payable within 30 days of service of the notice of entry of order. A proposed order was lodged with the Court which will be modified to conform to the Court’s ruling.

STATE OF CALIFORNIA, BY AND THROUGH THE CALIFORNIA DEPARTMENT OF FORESTRY AND FIRE PROTECTION VS. BORGNA

CASE NUMBER: 25CV-0208978

Tentative Ruling on Demurrer to First Amended Cross-Complaint: Plaintiff/Cross-Defendant State of California, by and through the California Department of Forestry and Fire Protection (“Cross-Defendant”) generally demurs to Defendant/Cross-Complainant Guiliano Borgna’s (“Cross-Complainant”) First Amended Cross-Complaint (“FACC”). Cross-Defendant alleges that the FACC fails to state sufficient facts to establish the causes of action for a prescriptive and implied easement. CCP § 430.10(e).

FACC Allegations: The FACC alleges that Cross-Complainant is the owner of real property (subject property) that is adjacent to the Pit River. Cross-Defendant is alleged to own an adjacent piece of real property (the Cal Fire property) which is also adjacent to the Pit River. Cross-Complainant claims a prescriptive easement to maintain a tributary on the Cal Fire property for the purpose of obtaining water from the Pit River that then flows to a pond on the subject property. The FACC alleges the two properties were once owned as single plot by the Hayes family. Finally, Cross-Complainant alleges he and his predecessors used the Cal Fire property in an actual, open, notorious, continuous and hostile manner for years possibly going back over 100 years.

Merits. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

First Cause of Action (Prescriptive Easement): While the FACC’s first cause of action is titled “Easement Based on Adverse Possession” it is in fact a cause of action to quiet title to a prescriptive easement. The party claiming a prescriptive easement must prove use of the property, which was open, notorious, continuous, and adverse for an uninterrupted period of five years. *Warsaw v. Chicago Metallic Ceilings, Inc.* (1984) 35 Cal.3d 564, 570.

The FACC contains only conclusory allegations of open, notorious, continuous and adverse use. It does not

contain specific facts of when the two properties were severed from joint ownership. It fails to identify specific facts as to how the property use was open, notorious, continuous, and adverse for an uninterrupted period of five years after the unknown severance date. Conclusory allegations are insufficient. *Hood, supra* 65 Cal.App.4th at 438. Cross-Complainant must provide specific facts to establish a right to a prescriptive easement including how it was obtained, who were the owners of the property and specific facts to show an open, notorious, continuous and adverse use for an uninterrupted period of five years. At best, Cross-Complainant potentially alleges he obtained the prescriptive easement against PG&E, the prior owner of the Cal Fire property, but such a prescriptive easement would appear to be barred by Civil Code 1007. The Court finds that Cross-Complainant has failed to allege sufficient facts to constitute a cause of action for a prescriptive easement. CCP § 430.10(e)

Second Cause of action (Implied Easement): An easement by implication requires: 1) a common ownership of a parcel and transfer or conveyance of one parcel or portion; 2) prior to the division of title, there must have been an existing obvious and apparently permanent, use of the quasi-easement by the common owner; 3) the easement must be reasonably necessary to the use and benefit of the quasi-dominant tenement. *Moore v. Walsh* (1995) 38 Cal.App.4th 1046, 1049. The FACC fails to allege each of the elements above. While the FACC makes conclusory statements about the history of the subject property and the property of Cal Fire, the chain of title has not been provided to show exactly when and how the property was subdivided. There are no allegations about the existence of the alleged easement, that it was obvious and apparently permanent or that it was reasonably necessary to the use and benefit of the quasi-dominant tenement. The Court finds that Cross-Complainant has failed to allege sufficient facts to constitute a cause of action for an implied easement. CCP § 430.10(e)

Civil Code Section 1007: Cross-Defendant argues that the entire FACC is barred by Civil Code § 1007 which prohibits obtain prescriptive rights over property dedicated to a public use by a public utility or dedicated or owed by the state. As the FACC does not sufficiently allege when the easement rights arose and who the owner of the properties would have been at that time, the Court cannot determine whether Civil Code section 1007 applies. The Court reserves the right to issue a substantive ruling on this issue based on clearer factual allegations.

Water Rights: While the FACC contains allegations about access to the tributary for maintenance it also contains various allegations about the right to the water of the Pit River. The FACC fails to allege facts establishing riparian rights on the Cal Fire property (as opposed to riparian rights on his own property) and fails to provide facts to establish an appropriative right on the Cal Fire property. The FACC only contains unsupported conclusions about the nature of the water rights. Given that the water rights are interrelated to the access and maintenance rights they will need to be sufficiently alleged with supporting facts to survive a demurrer.

The demurrer is **SUSTAINED**. The Court will grant Cross-Complainant leave to amend to address the issues raised above. The Court recognizes that this will be the second time that a demurrer has been sustained with leave to amend granted. At some point, should cross-complainant not be able to allege sufficient facts to survive a demurrer, further leave to amend may be denied.

Cross-Complainant is granted 30 days from service of the notice of entry of order to file a Second Amended Cross-Complaint. No proposed order was lodged with the Court. Cross-Defendant shall prepare the order.

TOMLINSON VS. DENTZ CUSTOMS & COLLISION, ET AL.

CASE NUMBER: 26CV-0210413

Tentative Ruling on Request for Supplemental Injunction: Plaintiff Charles Tomlinson seeks an injunction for the return or preservation of his vehicle alleged to be in the possession of Defendants, Dentz Customs &

Collision, Ryan Dale and Wendy Correa. No opposition has been filed. The proof of services for the “request” show service of a “proposed” supplemental injunction. It is unclear if the “proposed” documents served are the same as the documents filed with the Court. Additionally, the “proposed” supplemental injunction was served on May 26, 2026 but the current request was not filed until June 30, 2026. There is insufficient evidence to show that the Defendants were given notice of the current request and hearing date. The Court denies the motion due to lack of proper service.

Additionally, the request is unsupported by any evidence. No declaration was filed. The Court is without any evidence to find that the issuance of an injunction would be proper under the circumstances. The Court further notes that the request fails to provide any authority upon which it is based. In addition to the procedural defects noted above, the Court denies the motion on the merits due to lack of evidence and authority.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the denial.

WESLEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0207455

Tentative Ruling on Motions to be Relieved as Counsel: Asher Y. Hoffman from Law Offices of Asher Hoffman, APC moves to be relieved as counsel for Plaintiff Kathryn Wesley. As a preliminary matter, two separate Motions to be Relieved as Counsel were filed on 26, 2026.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d). The first motion is the MC-051 and MC-052 filed separately. The MC-053 is lodged. A Proof of Service was filed on June 26, 2026 indicating that the MC-051 was personally served on Plaintiff on June 25, 2026. The second filing has the MC-051, MC-052, and MC-053 all stapled as one packet along with a Proof of Service indicating electronic service on Plaintiff and Defendants on June 24, 2026. While Defendants can be served electronically through counsel, there is no indication in the file that Plaintiff has agreed to accept electronic service. Plaintiff must expressly agree to accept electronic service directly on Plaintiff, as opposed to service through counsel, in order for electronic service to be valid. CCP § 1010.6. Because electronic service on Plaintiff was invalid and because the Proof of Service filed June 26, 2026 only indicates that the MC-051 was personally served, the matter has not been properly served. All three documents must be served on the client per CRC 3.1362(d).

The motions are **DENIED** without prejudice. The Court cannot modify the proposed Orders submitted. Plaintiff's counsel is to prepare the Orders. The Court confirms the review hearing on **Monday, September 28, 2026 at 9:00 a.m. in Department 63.**

9:00 a.m. – Review Hearings

ANDRADE, ET AL. VS. WELLER

CASE NUMBER: 25CV-0207894

This matter is on calendar for review regarding status of default judgment. At the last hearing on June 15, 2026, the Court noted that Plaintiffs had dismissed the quiet title and declaratory relief actions as well as the Doe Defendants, but a default judgment had not been obtained. The Court continued the matter for review hearing today and ordered Plaintiffs to file a status statement no less than five court days prior to today's hearing. No status statement has been filed. **An appearance is necessary on today's calendar.**

BARNHART, ET AL. VS. LE ROUX, ET AL.

CASE NUMBER: 25CV-0208215

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Unconditional Settlement was filed on April 30, 2026 noting that the matter had settled on April 26, 2026. Plaintiffs were to dismiss the matter within 45 days of April 26, 2026. The matter has not been dismissed. The matter is continued to **Monday, October 5, 2026 at 9:00 a.m. in Department 63** for status of judgment/dismissal. The Court intends to dismiss the matter without prejudice on October 5, 2026 per CRC 3.1385(b) unless good cause is presented. Any good cause must be presented at or before the October 5, 2026 hearing. **No appearance is necessary on today's calendar.**

CASEY VS. DEPARTMENT OF MOTOR VEHICLES, ET AL.

CASE NUMBER: 26CV-0211122

This matter is on calendar for review regarding status of the writ. On July 7, 2026, the Court issued an Order that set forth what was to be discussed at today's hearing. Petitioner was to serve the July 7, 2026 Order on Respondent. There is no proof of service in the file to indicate that Respondent has been served with the July 7, 2026 Order or the Petition for Writ of Administrative Mandate. **An appearance is necessary on today's calendar.**

DOWDS VS. SHINGLETOWN VETERINARY SERVICES INC., ET AL.

CASE NUMBER: 25CV-0208571

This matter is on calendar for trial setting. However, the matter does not appear to be at issue as Defendant has not filed a responsive pleading. Default was entered against Defendants Shingletown Veterinary Services, Inc. and Rob Lydon on May 4, 2026, but on May 20, 2026, the parties stipulated that the default could be set aside to allow Defendant to file a responsive pleading. Defendant has not yet done so. **An appearance is necessary on today's calendar.**

HAYES VS. HOME DEPOT U.S.A, INC.

CASE NUMBER: 25CV-0207972

This matter is on calendar for status of judgment/dismissal. Notice of Unconditional Settlement was filed on March 16, 2026. A Request for Dismissal should have been filed within 45 days. The Court already continued this matter from June 15, 2026 and nothing new has been filed. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court will order this matter dismissed without prejudice pursuant to CRC 3.1385(b) and direct the clerk to vacate any future dates and close the file.**

JS MECHANICAL, INC. VS. LAFF, LLC, ET AL.

CASE NUMBER: 25CV-0207114

This matter is on calendar for review regarding status of the Cross-Complaint and trial setting. The Court notes that Cross-Defendant JS Mechanical, Inc. filed an Answer to Laff, LLC's Cross-Complaint on February 2, 2026. However, there is no proof of Service as to Cross-Defendant Jack A. Saunders, Jr. who has not filed a responsive

pleading. At the prior review hearing on March 30, 2026, the Court ordered Cross-Complainant Laff, LLC to get the Cross-Complaint at issue prior to June 1, 2026. There is still no proof of service for Jack A. Saunders, Jr. **An appearance is necessary on today's calendar to provide the Court with a status of service of the Cross-Complaint.**

LVNV FUNDING LLC VS. MARZANO

CASE NUMBER: 25CVG-02511

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on January 27, 2026 indicating the matter would be dismissed no later than May 9, 2028. The matter is continued to **Monday, July 10, 2028 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on July 10, 2028 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the July 10, 2028 hearing. **No appearance is necessary on today's calendar.**

MALINOVSKY VS. SHASTA UNION HIGH SCHOOL DISTRICT, ET AL.

CASE NUMBER: 26CV-0210144

This matter is on calendar for review regarding status of the writ. Respondent's Demurrer was sustained without leave to amend on this morning's Law & Motion calendar. The file was closed and all future dates were vacated.

MARTINEZ VS. PARSON

CASE NUMBER: 25CV-0208252

This matter is on calendar for review regarding status of service. The Court notes that the matter was filed on July 22, 2025 and there is still no Proof of Service of Summons on file. The Court previously issued an Order to Show Cause and Plaintiff requested sixty days to complete service and finalize settlement discussions. Nothing has been filed since the June 1, 2026 hearing on the Order to Show Cause. No status statement was filed. **An appearance is necessary on today's calendar.**

RSUI INDEMNITY CO. VS. SIERRA PACIFIC INDUSTRIES, INC., ET AL.

CASE NUMBER: 24CV-0204712

This matter is on calendar to confirm the trial that is set to commence on August 18, 2026. No status statements have been filed. **An appearance is necessary on today's calendar.**

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$14,323 US CURRENCY

CASE NUMBER: 26CV-0210865

Disclosure by the Court:

The Court makes the following disclosure to all parties in this case. Judge Benjamin L. Hanna discloses that his spouse is an employee of the Shasta County District Attorney's Office. That office represents Petitioner, the People of the State of California, in this action. The Court has no reason to believe that Judge Hanna's spouse had any involvement in the investigation, management, or prosecution of this case, but does find it appropriate to disclose the employment relationship between the Court's family member and counsel for the People of the State of California.

This asset forfeiture matter is on calendar for review regarding status. Claimant Peter Zile filed a claim on June 5, 2026. The District Attorney filed a Petition for Forfeiture in Rem on July 7, 2026. A proof of service is on file. This is the first appearance on the matter and the Court has not been informed whether criminal proceedings are pending. **An appearance is necessary on today's calendar.**

WILSON VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 25CV-0207256

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this as a Plan III matter and intends to set the matter for trial before March 9, 2027. Both parties have posted jury fees. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

WISEMAN VS. PLACER HEIGHTS PLAZA SHOPPING CENTER, LLC

CASE NUMBER: 25CV-0208884

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this as a Plan II matter and intends to set the matter for trial before April 6, 2027. Both parties have posted jury fees. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**